

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

June 26, 2017

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Richard Johnson, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Scott Roybal and Jeff White. Absent: Dicky Shanor. Also present: Carol Intlekofer, City Clerk, and Sylvia Hackl, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.). Upon request by Dr. Rinne, and pursuant to support received by Mr. Johnson and Mr. Cook, Items #24 (a) and (b) were removed from the Consent Agenda. Remaining Consent Agenda items were approved. Voting “yes” -- all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on June 12, 2017. Motion (per Consent Agenda) carried.

Mr. Roybal declared a conflict of interest (business interest in voucher payable to Tyrrell Chevrolet) and vacated Council Chambers. Mr. Luna moved to approve payment of vouchers as presented, seconded by Mr. Johnson. Motion carried. Voting “yes” -- all members of the governing body present in Council Chambers with the exception of Mr. Johnson voting “no”. Following announcement of the vote, Mr. Roybal returned to Council Chambers.

Mayor Orr opened a Public Hearing for a retail liquor license transfer of ownership application filed with the City Clerk’s Office for Maverik, Inc. d/b/a Maverik, Inc. #426, 140 Gardenia Drive, Cheyenne, Wyoming (License currently held by Lambousis Revocable Trust, d/b/a The Mayflower, 112 West 17th Street, Cheyenne, WY). Suzie Gudenkauf, Outlaw Liquors; Georgia Broyles and Kevin Georges spoke in opposition of the transfer, citing concerns with a convenience store package liquor environment, exposure of alcohol products to youth, previous governing body approval of a retail liquor license for Sam’s Club, competition with other licensees in the vicinity, Maverick’s in-store alcohol product signage and approving retail licenses for businesses that will generate a big source of revenue and jobs. Tom Welch, Board Chairman, Maverik, Inc., submitted a handout containing information on Maverik’s business operations (on file with City Clerk’s office) and discussed Maverik stores in the western region, employee and store investment and revenue statistics, Cheyenne community contributions, proposed footprint for the package store, neighborhood survey results of a poll the store conducted in support of its application, and employee alcohol training and youth prevention programs. Also speaking in favor of the application were Jennifer Tollefson, Regional Director, and David Hancock, Vice-President, Maverick, Inc., who reviewed Maverick’s comprehensive

employee alcohol training program and precautionary identification and security measures that will be in place in the store. Chuck West, speaking on behalf of the current licensee, reviewed recently revised state statutes related to liquor licenses and putting “parked” licenses into active use. John Lambousis, current licensee, spoke in support of the transfer; provided an extensive history of the liquor license he holds and referenced previous attempts to transfer the license which were not approved by City Council. There being no further comments or input and purpose of the hearing having been met, Mayor Orr closed the public hearing and referred the application to Finance Committee.

ORDINANCE – 3rd READING - Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from LR Low-density Residential and P Public to MR Medium-density Residential and P Public for all of Block 4 (Lots 1 thru 9 inclusive), and those adjacent alley rights-of-way, Spring Valley Addition, Cheyenne, Wyoming (located at the southeast corner of the intersection of Townsend Place and Marjon Court). Seth Lloyd, Development office, explained staff received a letter from the applicant on June 16, 2017 requesting a portion of the zone change area be withdrawn. He stated the applicant is no longer requesting the MR zone and is now asking for the P Public zone for properties to be owned by the City. Mr. Lloyd advised staff recommends denial of the modified zone change request, reviewing reasons for the staff’s recommendation, and noted if City Council wishes to approved the revised zone change request, an amendment would need to be approved to revise the ordinance and map. He further explained the protest petition previously filed by residents in the area is in effect and the requested revised zone change does not affect the validity of the petition. Casey Palma, Steil Surveying Services, agent for the applicant, provided information on the purpose of the initial vs. revised zone change request, noting plans have changed for the development project. Leslie Arnett commented on positive communications and concessions by the property owner/applicant with the neighborhood, and voiced support for the revised zone change and affiliated final plat. Reporting for Public Services Committee, Mr. Roybal stated there was no recommendation on the item from the Committee. There being no motion made to approve, the ordinance died on third and final reading.

ORDINANCE – 3rd READING – Defining the terms and conditions of employment for non-uniformed employees of the City of Cheyenne for Fiscal Year 2017-2018. Reporting for Finance Committee, Mr. Luna moved to approve on third and final reading, seconded by Mr. Johnson. Motion carried. Voting “yes”-- all members of the governing body present. (#4184)

ORDINANCE – 3rd READING – Defining the terms and conditions of employment for sworn officers of the Cheyenne Police Department for Fiscal Year 2017-2018. Mr. Luna moved to approve on third and final reading, seconded by Mr. Johnson. Motion carried. Voting “yes” - all members of the governing body present. (#4185)

ORDINANCE – 3rd READING – Repealing Chapter 5.12, Alcoholic Beverages, in its entirety and creating a new Chapter 5.12, Alcoholic Liquor and Malt Beverages, of Title 5, Business Licenses and Regulations, of the code of the City of Cheyenne, Wyoming. Captain Nathan Buseck, Cheyenne Police Department, noted he and Chief Brian Kozak had recently met

and worked with Wyoming Liquor Division, Wyoming State Liquor Association and Laramie County Beverage Association representatives and support involving proposed changes [by substitute ordinance] to the initial ordinance had been reached. Mike Moser, Executive Director, Wyoming State Liquor Association, advised he had no official position on the ordinance but was involved in the co-authoring of state legislative bills that were approved at the last legislative session, indicating the legislature's intent was to simplify liquor laws and keep up with similar practices in neighboring states. Speaking in support of the proposed substitute ordinance were: Chris Brown, Executive Director, Wyoming Lodging and Restaurant Association, and Kevin Georges, Laramie County Beverage Association. Topics discussed included positive changes due to less restrictive dispensing room requirements; changes providing better customer service and dining experiences, and appreciation for meetings with the police chief and staff. Georgia Broyles discussed alcohol over-service and calls for service by law enforcement. Mr. Luna moved to approve on third and final reading, seconded by Mr. White. Mr. Luna moved to amend by substitute ordinance as recommended by City staff dated June 16, 2017, seconded by Mr. Roybal. Upon inquiry by Michael Langhoff, Two Bar Bowl, Carol Intlekofer, City Clerk, advised the proposed substitute includes an exemption to the persons under 21 years of age restriction for businesses whose primary purpose of the business operation within the licensed building is operation as a bowling center business and commercially provided food services. Discussion followed on the substitute ordinance. Upon inquiry, Captain Buseck explained that language changes relating to excessively intoxicated and over-service were taken directly from the TIPS training manual and provided information on enforcement and citation process for violations, and Mr. Georges advised that invitation to meet with the police chief on ordinance concerns was issued to members of the County Beverage Association. Ms. Intlekofer provided information on the ordinance sections referencing the restriction on "delivery service" of alcoholic liquor and malt beverages. Motion to amend by substitute carried. Voting "yes" -- all members of the governing body present with the exception of Mr. Johnson voting "no". Main motion as amended carried. Voting "yes" -- all members of the governing body present with the exception of Mr. Johnson voting "no". (#4186)

ORDINANCE – 2nd READING - Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from MR Medium-Density Residential and P Public to NR-3 Neighborhood Residential – High Density and P Public for Lots 1-20, Block 1 and Lots 1-18, Block 2 of Ehernberger Subdivision and a portion of Frank Court (Res. No. 5732), Sunnyside Addition 7th Filing, to be vacated, being located in a portion of the SW¼, NE¼, of Section 27, Township 14 N, Range 66 W of the 6th Principal Meridian in Cheyenne, Wyoming (located at the northeast corner of the intersection of College Drive and Rock Springs Street). Mr. Roybal moved approve on second reading, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body present.

ORDINANCE – 2nd READING – Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from LI-Light Industrial to MUR—Mixed Use Residential Emphasis for a parcel of land situated at the South 48 feet of Lot 1, Block 285, Original City, Cheyenne, Wyoming, to be known as 1920 Dillon Avenue (located on the west side of Dillon Avenue between 19th and 20th Streets). Mr. Roybal

moved approve on second reading, seconded by Mr. Cook. Motion carried. Voting “yes” -- all members of the governing body present.

ORDINANCE – 2nd READING – Amending the City of Cheyenne’s Solid Waste Fee Schedule. Vicki Nemecek, Public Works Director, provided detailed information on the history of the City’s solid waste and landfill operations, expansions and disposal practices; solid waste rate study conducted in 2013, and rationale for the proposed rate increases. Barbie Harrington; Julie Gliehm, Wyoming Landlords Association; Edward Melko, Rick Fierro, Ram Trucking, and Brad Harrington spoke in opposition of the proposed rate increases. Topics discussed included: Potential closures of some Wyoming landfills; waste disposal rates in rental units and difference in rates compared to other Wyoming municipalities; sanitation collection practices; rate structuring; effect of increases on individuals with limited budgets; purchase of the Belvoir Ranch by the City for landfill purposes; landfill account; landfill cap and closure costs; landfill DEQ permitting; concerns with re-introducing the ordinance after it previously failed, and protecting people’s rights. Mr. Luna moved to approve on second reading, seconded by Mr. Roybal. Discussion included: DEQ requirements; waste management operations by the private sector; landfill scenarios relative to privatization; consequences of not increasing rates, and history of rate increases. Upon inquiry, Mr. Fierro expressed his opinion on negotiable annual contracts; operational inefficiencies; competition with private business and solid waste as a fuel source. Request was made that Ms. Nemecek provide information for the next Finance Committee meeting regarding consequences of not increasing rates and affiliated landfill costs, landlord rates, roll-off service expenses, and amount of revenue returned to the general fund. Upon inquiry, Ms. Nemecek provided rate increase history since 2002. Motion carried. Voting “yes” -- all members of the governing body present with the exception of Mr. Cook and Mr. Luna voting “no”.

ORDINANCE – 1st READING – Creating Section 10.24.180, Nuisance exhibition motor vehicle exhaust-prohibited, of Chapter 10.24, Rules of the Road Generally, of Title 10, Vehicles and Traffic, of the Code of the City of Cheyenne, Wyoming – referred to Public Services Committee. (Sponsor – Mr. Case)

RESOLUTION – Approving the budget of the Cheyenne Downtown Development Authority for the Fiscal Year beginning July 1, 2017 and ending June 30, 2018 (postponed from June 12, 2017). Desiree Brothe, Interim Director, Downtown Development Authority, expressed appreciation for the City’s funding portion and spoke in support of the resolution. Mr. Luna moved to adopt, seconded by Mr. Johnson. Discussion followed on the role of DDA and downtown revitalization efforts. Mr. Luna moved to amend by substitute resolution dated June 19, 2017, seconded by Dr. Rinne. It was noted the proposed substitute reflects monetary changes to the DDA budget due to approval of the City’s budget ordinance. Motion to amend carried. Voting “yes” -- all members of the governing body present. Main motion as amended carried. Voting “yes” -- all members of the governing body present. (#5859)

[CA] RESOLUTION – Approving outside user water and sanitary sewer services, by outside user’s agreement, with Cooley Construction, LLC, Lot 15, Block 16, North Cheyenne, Second Filing, according to the official plat for record in Laramie County, Wyoming. Motion (per Consent Agenda) carried. (#5860)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Arroyo Subdivision, a replat of all of Block 4 (Lots 1 thru 9 inclusive) and those adjacent alley rights-of-way, Spring Valley Addition, City of Cheyenne, Laramie County, Wyoming (located at the southeast corner of the intersection of Townsend Place and Marjon Court) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for North College Subdivision, a replat of Lots 1-20, Block 1 and Lots 1-18, Block 2 of Ehernberger Subdivision and a portion of Frank Court (Res. No. 5732), Sunnyside Addition 7th Filing, to be vacated, being located in a portion of the SW¼, NE¼, of Section 27, Township 14 N, Range 66 W of the 6th Principal Meridian in Cheyenne, Wyoming (located at the northeast corner of the intersection of College Drive and Rock Springs Street) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Re-appropriating the Fiscal Year 2017 budget of the City of Cheyenne according to the provisions of W.S. §§ 16-4-112 and 16-4-113 – referred to Finance Committee. (Sponsor - Mr. Luna)

[CA] RESOLUTION – Authorizing the filing of applications with the Federal Transit Administration, an operating administration of the United States Department of Transportation, for Federal Transportation assistance authorized by Title 49, United States Code, Section 5307 – referred to Finance Committee. (Sponsor – Mr. Luna)

[CA] RESOLUTION – Supporting the City of Cheyenne’s application for Transportation Alternatives Program (TAP) funds for construction of the West Allison School Crosswalk Project – referred to Finance Committee. (Sponsor – Mr. Luna)

[CA] RESOLUTION – Designating local historian William “Bill” Dubois as the City of Cheyenne’s official historian laureate in conjunction with community activities during 2017 celebrating the City’s 150th Anniversary – referred to Public Services Committee. (Sponsor – Mr. White)

Agreement between the City of Cheyenne and the Cheyenne Symphony Orchestra for the use of the Cheyenne Civic Center for the youth education concerts. Lindsey Reynolds, Executive Director, Cheyenne Symphony Orchestra, stated that funding from the contract helps with the youth education concerts program, and provided information on the program and fund-raising efforts and grant applications to supplement costs. Mr. Luna moved to approve, seconded by Mr. Roybal. Upon inquiry, Ms. Reynolds explained elements of the program and affiliated costs, and funding sources. Comment was made regarding consideration of funding for other cultural organizations in the community. Motion carried. Voting “yes” -- all members of the governing body present with the exception of Dr. Rinne voting “no”. (#6677)

Agreement between the City of Cheyenne and the Cheyenne Symphony Orchestra for the use of the Cheyenne Civic Center for the 2017-2018 concert season. Lindsey Reynolds, Executive Director, Cheyenne Symphony Orchestra, noted the contract is for rental of the Civic Center for Symphony concerts and stated the total amount to be paid by the Symphony under the

contract would be \$17,500.00. Mr. Luna moved to approve, seconded by Mr. Johnson. Comment was made on the cost of renting the Civic Center facility to different user groups. Motion carried. Voting “yes” -- all members of the governing body present with the exception of Dr. Rinne voting “no”. (#6678)

[CA] Real Estate Purchase Agreement between Manuel M. Sena and the City of Cheyenne for the City’s purchase of real property located at 2327 Westland Road, Cheyenne, Wyoming, to be used for public purposes. Motion (per Consent Agenda) carried (in an amount of \$115,000.00). (#6679)

[CA] Memorandum of Understanding between the City of Cheyenne, Transit Division, and Laramie County, Wyoming, to provide public transportation services to Laramie County Community College and for an area of Laramie County immediately adjacent to the City (Revenue to City). Motion (per Consent Agenda) carried (revenue to the City \$77,500.00). (#6680)

[CA] Contract between the City of Cheyenne, Youth Alternatives and Laramie County Community Partnership, Inc., for academic and enrichment activities for at-risk school-age youth at Johnson Junior High School (21st Century Community Learning Centers Cohort Eight grant funds). Motion (per Consent Agenda) carried (revenue to the City \$102,139.00). (#6681)

[CA] Agreement between the City of Cheyenne and the Diocese of Cheyenne to sell and purchase real property located at 2020-2022 Capitol Avenue, Cheyenne, Wyoming, and described as all of Lots 1 and 2, Block 266, Original City, City of Cheyenne, Laramie County, Wyoming – referred to Finance Committee.

[CA] Professional Services Agreement between the Cheyenne Metropolitan Planning Organization and Ayres Associates for the Cheyenne Frontier Days Traffic Study and Transportation Plan – referred to Finance Committee.

[CA] Consideration of Bid #E-25-17 for furnishing 70 new computers and operating systems for the City of Cheyenne (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried (approve bid submitted by CDW Government, LLC, Vernon Hills, IL, in an amount not to exceed \$39,830.00).

[CA] Contract Modification #1 to Contract No. 6305 between the City of Cheyenne and RBC Global Asset Management (U.S.) Inc. for City financial asset investment professional services. Motion (per Consent Agenda) carried. (#6305)

[CA] Contract Modification #1 to Contract No. 6622 between the City of Cheyenne and Reiman Corporation and Contract No. 6626 between the City of Cheyenne and Waste Management of Colorado, Inc. for the purpose of re-allocating funds due to unforeseen site conditions involving the excavation and disposal of waste soil for the Pumphouse Wetlands Project (1% Specific Sales and Use Tax). Motion (per Consent Agenda) carried (in the amount of \$80,000). (#6622, #6626)

Following a brief recess for the purpose of holding a special Finance Committee meeting on the following item, Mayor Orr reconvened the meeting at 9:13 p.m.

Contract Modification #2 to Contract No. 6655 between the City of Cheyenne and DAPCPA Pope & Jackson, Inc. for the purpose of extending the term of the Non-Attest Consulting Services Agreement providing accounting services to the City of Cheyenne, through September 30, 2017, and providing for a cap on the amount of compensation – referred to Finance Committee. [Note: due to the necessity of having final Council action on this item prior to June 30, 2017 there will be a special meeting of the Finance Committee held June 26, 2017, during a recess of the regular Council meeting.] Carol Intlekofer, City Clerk, advised that due to the special Finance Committee meeting that was held in conjunction with the item, it would be the next item before the governing body. Reporting on recommendation from the special Finance Committee meeting, Mr. Luna moved approve, seconded by Mr. White. Upon inquiry, David Pope, DAPCPA Pope & Jackson, Inc., provided information on contract services, which includes certain services by McGee, Hearne and Paiz, and auditing practices. Discussion included term extension of the contract, services provided, contract fee and auditing information. Mayor Orr clarified that when a new City Treasurer is hired and Mr. Pope's services are no longer needed, payments will cease, which could be before the extended contract term of September 30, 2017. Motion carried. Voting "yes" -- all members of the governing body present with the exception of Mr. Johnson voting "no".

Re-Appointments of Sam Galeotos and Judith Myers to the Downtown Development Authority Board; Terence Michael Roker to the Public Transit Advisory Board; Barry Sims and Tony O'Brien to the Tourism Promotion Joint Powers Board (Visit Cheyenne Board). Mr. Roybal moved to approve, seconded by Dr. Rinne. Motion carried. Voting "yes" -- all members of the governing body present with the exception of Mr. Johnson voting "no" and Mayor Orr who did not vote (Mayoral appointees).

Appointments of John Edwards to the Board of Public Utilities; Paula Scott to the Community Action of Laramie County-Executive Board; Steve Borin and Jonathan Savelle to the Downtown Development Authority Board; Lisa Smith, G. Michael Hager and Justin Zeman, to the Mayor's Council for People with Disabilities; Barbara Fecht, Jennifer Lundberg and Jordan Evans, to the Public Transit Advisory Board; Domenic Bravo to the Tourism Promotion Joint Powers Board (Visit Cheyenne Board). Mr. Luna moved to approve, seconded by Mr. White. Voting "yes" -- all members of the governing body present with the exception of Mr. Johnson voting "no" and Mayor Orr who did not vote (Mayoral appointees).

Announcement was made of a Public Hearing to be held July 10, 2017 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exists for the west 421.77' of Tract 1, Lincoln Valley Tracts, being situated in a portion of the NW ¼ of Section 36 Township 14 North, Range 66 West of the Sixth Principal Meridian, Laramie County, Wyoming (located southeast of the intersection of Whitney Road and East Pershing Boulevard).

Announcement was made of a Public Hearing to be held July 10, 2017 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, to determine whether

compliance of annexation conditions required by Wyoming Statute §15-1-402 exists for all of Lot 1, Block 1, Taxidermy Addition and the north 305.23' except north 150' of Tract 14, Sunny Side Addition and the north 50' of the south 300' of the west 91' of Tract 14, Sunny Side Addition; situated in the SW¼ SW¼ of Section 27, T.14N., R.66W. of the 6th P.M., Laramie County, Wyoming (located northeast of the intersection of Ridge Road and East Pershing Boulevard).

Announcement was made of the Re-Appointments of Michael Sorenson, Rob Dafoe, Gus Lopez, Monique Meese and Carla Thurin to the Laramie County Community Juvenile Services Joint Powers Board, to be confirmed July 10, 2017.

Announcement was made that due to the Fourth of July Holiday on Tuesday, July 4, 2017, regularly scheduled City Council Committee meetings will instead be held on Wednesday, July 5, 2017 in the Municipal Building, 2101 O'Neil Avenue, Room 122, Cheyenne, Wyoming, as follows: Finance Committee will meet at 11:00 a.m. and Public Services Committee will meet at Noon.

Under other business:

Mr. White expressed appreciation to city staff who helped with the annual Superday event, and, upon inquiry, Mayor Orr advised the FEMA extension request for the Civic Center Commons Project had been submitted to the Department of Homeland Security.

Mayor Orr announced that City offices will be closed on July 3 and 4, 2017 for the Independence Day holiday.

There being no further business to come before the governing body, the meeting was officially adjourned at 9:25 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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